



POLICE DEPARTMENT

January 30, 2026

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In the Matter of the Charges and Specifications :

Case No.

- against - :

C-032007

Inspector Neil Zuber :

Tax Registry No. 931483 :

Strategic Response Group :

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU:

Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Louis La Pietra, Esq.
La Pietra & Krieger, P.C.
30 Glenn Street, Suite 105
White Plains, NY 10603

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Captain Neil Zuber,¹ on or about July 9, 2019, at approximately 1854 hours, while assigned to the 20 Precinct and on duty, in the vicinity of the northeast corner of 5th Avenue and West 130th Street, New York County, wrongfully used force, in that he took Complainant to the ground without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

2. Captain Neil Zuber, on or about July 9, 2019, at approximately 1854 hours, while assigned to the 20 Precinct and on duty, in the vicinity of the northeast corner of 5th Avenue and West 130th Street, New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the New York City Police Department, in that he arrested Complainant without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on December 29, 2025. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The CCRB did not call any witnesses, but introduced into evidence video footage of the incident. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Not Guilty.

ANALYSIS

The charges in this case stem from an encounter between Respondent and an individual ("Complainant") that occurred approximately six-and-one-half years ago on July 9, 2019. Following a car stop in the vicinity of 130th Street and 5th Avenue in Manhattan, officers on the

¹ Respondent was promoted to the rank of Inspector in February 2025.

scene put over a 10-85 call for assistance. Respondent, who was the Executive Officer of the 32 Precinct at the time, testified that he was inside the stationhouse when he heard the call, and immediately responded to the location. While en route, he heard additional calls for assistance come over the radio. (Tr. 24-25)

Upon his arrival at the scene, Respondent observed a “disruptive” and “belligerent” crowd around the vehicle that had been stopped. Civilians were cursing and screaming at the police and items were being thrown, including a mountain bike that struck an officer. Respondent testified that the crowd was obstructing officers’ access to the vehicle, so he had to park blocks away and run over to the scene. He spoke with a lieutenant who advised him that the vehicle that had been stopped had a suspended registration, and the driver did not possess a valid license. Additionally, a passenger inside the vehicle had been observed reaching under the seat during the stop. (Tr. 25-28, 44)

After the occupants of the car had been removed, officers were ordering people in the crowd of 30-40 people to move back, to no avail. Physical struggles between officers and “combative” civilians ensued, and some individuals in the crowd were trying to remove items from the vehicle. According to Respondent, the vehicle was treated as evidence and would not be released at the scene, and the officers were responsible for safeguarding the car and any property inside of it. Respondent testified that he also was concerned there could be weapons inside the vehicle, to which someone in the crowd might gain access if they were not moved away. (Tr. 28-33, 49-50)

In order to protect the property and ensure police officer safety, Respondent and the officers attempted to set up a “frozen zone” around the vehicle to keep the crowd at a safe distance. Respondent testified that as he was attempting to do so, Complainant disobeyed

multiple orders to move back away from the car, and instead repeatedly tried to evade Respondent by sidestepping around him. Complainant told Respondent that he better move out of the way and let him pass. Respondent answered, “Or what?” and Complainant said, “I’m gonna knock you out.” (Tr. 33, 37-39, 50, 57, 61-66, 69-73, 79, 95-99)

Respondent testified that this statement, coupled with the manner in which Complainant was moving quickly and aggressively, raised the threat level. He was concerned that Complainant, who was “hunching his shoulders and dropping his center of gravity,” would punch him. Respondent reached out to grab Complainant’s forearm above his wrist in order to take him into custody, but Complainant pulled away and flailed his arms above his head, causing Respondent to lose his grip. Complainant transferred his cell phone from his right hand to his left, spun around, and lowered into a fighting stance, at which point Respondent, trying to maintain contact, grabbed Complainant by the shoulder and brought him to the ground. Other officers assisted him in placing Complainant in handcuffs. (Tr. 39-41, 63, 76-77, 81-85, 87)

According to Respondent, another officer handled the arrest of Complainant. Respondent testified that he could not recall what the arrest charges were, though from his perspective Complainant could have been charged with Obstructing Governmental Administration, Disorderly Conduct, and possible additional charges for the threats he made. The Manhattan District Attorney’s Office ultimately declined to prosecute Complainant on the arrest. Respondent also noted that both the Internal Affairs Bureau and the District Attorney’s Office investigated Respondent’s role in this matter, and they found all of Respondents’ actions to be proper. (Tr. 8, 41-43, 90-93)

Complainant did not appear to testify. Instead, the CCRB relied upon two video recordings that captured the incident from different angles: a cell phone video from a witness

(CCRB Ex. 1) and the BWC footage of Police Officer Jimmy Gutierrez (CCRB Ex. 2), who was at the scene.

In the cell phone footage, which is less than one minute in length, a crowd of people can be seen standing around the vehicle, which is being guarded by police officers. Respondent, wearing a white vest, is instructing people to move away from the car. He comes face-to-face with Complainant, who is wearing a white T-shirt and a Yankees cap, and is standing on the sidewalk, a few feet from the front of the vehicle. Respondent repeatedly tells him to back up, and he succeeds in backing him up a few steps, though Complainant is making comments to Respondent that are inaudible on the recording. Complainant moves to the left, then to the right, trying to pass, but Respondent blocks him both times. Complainant makes another inaudible statement, Respondent replies, “Or what?” and Complainant can be heard stating, “knock you out,” as he walks to the left. Respondent reaches for Complainant’s right arm, but he pulls away and raises his arms above his head, switching his cell phone from his right hand to his left. A struggle ensues, as Respondent appears to grab Complainant in the shoulder area and brings him to the ground. Other police officers assist in gaining control of Complainant, as the crowd surrounds them. (CCRB Ex. 1)

The BWC footage, which is approximately 14 minutes long, shows police officers and civilians standing in the vicinity of the vehicle. A woman is placed in handcuffs and escorted to an RMP. At 1:07, an individual wearing a white shirt, identified as the father of the driver of the vehicle, engages in a heated conversation with an officer near the rear of the car. At 1:17, Respondent approaches, places his hand on the individual’s arm and tells him to back up, which he does. Respondent then moves off to deal with other people in the crowd, and has the interaction with Complainant described above. Once Complainant is brought to the ground,

Respondent can be heard saying to him, “Now you get to go to jail too. How do you feel now?” After Complainant is handcuffed, Respondent also states, “Do not tell a cop you’re gonna knock them out, understand me?” Complainant is brought to his feet and walked to an RMP by another officer in plain clothes. (CCRB Ex. 2)

Respondent faces two charges in connection with this incident. Specification 1 charges him with wrongful use of force, in that he took Complainant to the ground without police necessity. Specification 2 alleges that Respondent wrongfully arrested Complainant. As part of this trial, the parties stipulated that with respect to Specification 1, the use of force charge, the CCRB investigation into this matter exonerated Respondent. Nevertheless, the CCRB’s Board subsequently voted to substantiate that count, and also voted to charge Respondent with the second specification, for arresting Complainant without sufficient legal authority. (Tr. 4-7)

Section 221-02 (11) of the Patrol Guide states that officers should apply no more than reasonable force necessary to gain control of a subject. Here, it is undisputed that Respondent forcefully brought Complainant to the ground, and then had him placed under arrest: the video footage captures the encounter, and Respondent acknowledged it as well. At issue is whether under the circumstances presented here, the CCRB has met its burden of proving that Respondent acted unreasonably in bringing Complainant down and having him arrested.

In assessing the facts in this case, it would have been useful to hear Complainant’s perspective regarding the events of July 9, 2019. Since he did not appear at the trial, there was no opportunity to question him about his actions that day, including his attempts to move past Respondent and the threatening words he said during their interaction. The only witness to testify was Respondent, an experienced member of the service whose testimony was detailed, logical, and consistent with the video evidence.

Respondent provided important context to his encounter with Complainant. He and his colleagues were attempting to set up a safety zone around the vehicle, and to maintain order amid a hostile, belligerent crowd. Those who complied with their orders to move away from the vehicle, such as the father of the driver of the car, avoided any additional confrontations with the police. Had Complainant simply followed Respondent's instruction to back up, as others in the crowd did, this incident could have been averted.

Instead, Complainant chose to aggressively defy Respondent's repeated orders, trying to move past him, and even going so far as to threaten Respondent that he would "knock him out." I credit Respondent's testimony that by acting in this manner, Complainant obstructed governmental administration, in that he intentionally interfered with officers in the performance of their duties. In response to Complainant's actions, including his threatening behavior and active resistance, Respondent did not act unreasonably in forcibly taking him to the ground and having him placed under arrest.

The record has failed to establish, by a preponderance of the credible evidence, that Respondent wrongfully used force, or that he arrested Complainant without sufficient legal authority. Accordingly, I find Respondent Not Guilty of both specifications.

APPROVED
MAR 24 2026
Jessie Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials